

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RONALD PRUITT,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, DEPUTY INSPECTOR
JOSEPH M. GULOTTA, POLICE OFFICER MICHAEL
GUZMAN #29790, POLICE OFFICER RAUL COLON
#29977, POLICE OFFICER DANIEL BERARDI #7961,
POLICE OFFICER JOSEPH RIVERA #26171, POLICE
OFFICER BRIAN MAHON, JOHN DOE ##1-6,

Defendants.
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Docket No.:

2014-cv-03969(JBW)(VVP)

**AMENDED COMPLAINT
AND
JURY DEMAND**

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 USC §1983, the 4th and 14th Amendments to the United States Constitution.

2. The claim arises from an incident on June 14, 2012 in which officers of the New York City Police Department (“NYPD”), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §1983, and the 4th and 14th Amendments to the United States Constitution.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant police officers work in said district, the underlying arrest was effectuated in said district and the City of New York is located within the boundaries of said district.

PARTIES

7. Plaintiff is a citizen of the United States and at all times here relevant resided in the County of Kings, City and State of New York.

8. The City of New York (“the City”) is a municipal corporation organized under the laws of the State of New York.

9. New York Police Commissioner Raymond W. Kelly (“the Commissioner”) was at all times here relevant the Commissioner of the New York City Police Department, and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendants. The Commissioner is sued in his individual and official capacities.

10. Deputy Inspector Joseph M. Gulotta (“the Deputy Inspector”) was at all times here relevant the Commanding Officer of the 73rd Precinct and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers within the precinct, including the other individual defendants. The Deputy Inspector is

sued in his individual and official capacities.

11. Police Officer Michael Guzman #29790, Police Officer Raul Colon #29977, Police Officer Daniel Berardi #7961, Police Officer Joseph Rivera #26171, Police Officer Brian Mahon, John Doe ##1-6 (“the officers”) are members of the NYPD, and are sued in their individual and official capacities.

12. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL ALLEGATIONS

13. On June 14, 2012 at approximately 1:20 a.m., in the vicinity of Riverdale Avenue and Thomas Boyland Street, in Brooklyn, one Travis Roundtree was beaten by three men who were strangers to him. They stole his money and keys. He was beaten in the head until he was unconscious.

14. His girlfriend Victoria Dunn was at the scene. His Mother, Geraldine Ragland, was also at the scene.

15. NYPD officers Berardi and Mahon responded to the scene. Roundtree told them he could not identify his assailants. Dunn told them she saw a male black approximately six feet tall of “thick build” wearing a white t-shirt attack Roundtree. Ragland told them she could not identify her son’s assailants because she could not see their faces.

16. Berardi and Mahon placed Dunn into an RMP and canvassed the area with her looking for the assailants.

17. At the time of the canvas, plaintiff arrived at 451 Bristol Street in Brooklyn New York, and rang the doorbell. While he was waiting at the front door officers Guzman, Colon and two other officers surrounded him. They radioed to Berardi and Mahon that they had caught a possible suspect who in turn told this information to Dunn and drove her to where plaintiff was being detained.

18. Upon viewing plaintiff Dunn told the officers that she thought she recognized the man in the white shirt, but that she wasn't too sure if it was him.

19. In spite of this equivocal identification, plaintiff was arrested and wrestled into the RMP by Officer Rivera and other officers whereby he sustained a sprained right ankle that caused him to be treated at Brookdale University Hospital Medical Center.

20. Plaintiff never resisted arrest, attempted to flee, or acted in any way to otherwise justify the officers' actions.

21. Thereafter officer Berardi told an employee of the Kings County District Attorney's Office in the Early Case Assessment Bureau Complaint Screening Room that Dunn had positively identified plaintiff, when she clearly had not been sure of her identification.

22. At arraignments the Assistant District Attorney represented to the court that two eyewitnesses had identified plaintiff, even though at that point no one had affirmatively positively identified him as one of Roundtree's assailants.

23. In the Grand Jury Dun testified that the one thing she really remembered was that one of the assailants was wearing a white t-shirt. She equivocated when asked if there came a point when she recognized anyone in relation to this case and answered that she thought she had recognized the man in the white shirt but wasn't too sure if it was

him because she was a little flustered by what had just happened that night.

24. In spite of this equivocation by Dunn, and Roundtree & Ragland's inability to identify the assailant, the NYPD and the Kings County District Attorney's Office persisted with the prosecution of plaintiff. He remained incarcerated for thirty-two days after arraignment until he was able to post \$15,000.00 (fifteen thousand dollars) bail in order to be released from jail. Thereafter he made nine court appearances over the course of one year and two months.

25. On June 12, 2013 the Assistant District Attorney assigned to the case informed plaintiff's counsel that his office would not be ready for the pre-trial identification hearing because the eyewitness was unsure of her identification of plaintiff. He went further to say that the eyewitness said she had told Officer Berardi at the time of arrest that she was unsure of the identification at the time, which is consistent with her Grand Jury testimony. Yet, in spite of this, rather than dismiss the case against plaintiff after a year of back and forth court appearances, the District Attorney's office made an offer to plaintiff of an A misdemeanor and time served. Plaintiff rejected the offer.

26. On June 13th the Assistant District Attorney again reiterated that the eyewitness could not identify plaintiff.

27. On August 8, 2013, the case against plaintiff was dismissed for insufficient evidence.

28. At all times during the events described above, the defendant police officers and the People of the City of New York were engaged in a joint venture. The individual officers and district attorneys assisted each other in performing the actions described and lent their physical presence and support and the authority of their offices to

each other during said events.

29. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth Amendment to the United States Constitution to be free from an unreasonable search and seizure of his person,
- b. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution,
- c. Physical pain and suffering,
- d. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, financial loss, lost wages and medical expenses,
- e. Attorney's and court fees.

FIRST CAUSE OF ACTION
(42 USC §1983 4th Amendment Violation)

30. Paragraphs one through 29 are here incorporated by reference.
31. Defendants intended to confine plaintiff by arresting him because they did so without an unequivocal affirmative positive identification.
32. Plaintiff was conscious of the confinement as he had to pay \$15,000.00 in order to be released.
33. Plaintiff did not consent to the confinement as he refused to plead guilty.
34. The confinement was not otherwise privileged.
35. There was no probable cause to arrest defendant as the “eye witness” consistently indicated she could not be sure whether he was one of the assailants.

36. Defendants' conduct deprived plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution

37. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC §1983.

38. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged in the sum of Three Hundred Thousand (\$300,000.00) Dollars.

SECOND CAUSE OF ACTION
(42 USC §1983 14th Amendment Violation)

39. Paragraphs one through 38 are here incorporated by reference.

40. Defendants began and continued a criminal prosecution against plaintiff.

41. Defendants lacked probable cause to believe the proceedings would succeed because there was never an unequivocal affirmative positive identification of plaintiff as the assailant.

42. Defendants actions were malicious because they knew they had no unequivocal affirmative positive identification yet at arraignment they represented that they had two positive identifications; then after the witnesses equivocal Grand Jury testimony, the prosecution continued for over one year; then after the "eye witness" again said she couldn't be sure if it was plaintiff who assaulted Roundtree, they saw fit to offer plaintiff a criminal disposition.

43. After plaintiff refused to plead guilty to a misdemeanor, the case was finally dismissed against him for insufficient evidence.

44. Plaintiff spent thirty-two days in jail after arraignment before posting bail

in order to be released. He made nine court appearances over the course of the one year and two month prosecution.

45. Defendants' conduct deprived plaintiff of his right to due process of law pursuant to the Fourteenth Amendment of the United States Constitution.

46. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC §1983.

47. As a result of the malicious prosecution implemented by defendants, plaintiff was damaged in the sum of Three Hundred Thousand (\$300,000) Dollars.

THIRD CAUSE OF ACTION
(42 USC §1983 Municipal Liability)

48. Paragraphs one through 47 are here incorporated by reference.

49. Defendants maintain an official policy of stringing along weak evidentiary cases for multiple adjournments and then, on the eve of trial, offering "too low to refuse" offers tempting "tired of coming to court" plaintiffs into pleading guilty when defendants know there is insufficient evidence of guilt. This policy is clearly evident here, where there was never an unequivocal affirmative positive identification, yet at arraignment they represented that they had two positive identifications; then after the witnesses equivocal Grand Jury testimony, the prosecution continued for over one year; then after the "eye witness" again said she couldn't be sure if it was plaintiff who assaulted Roundtree, they saw fit to offer plaintiff the lowest of criminal dispositions with a sentence of time served. They offered this even after admitting to plaintiff's counsel that they had no evidence with which to actually prevail at trial because their custom was too strong to resist.

50. This official policy and custom caused plaintiff to suffer the denial of his constitutional rights guaranteed by the 4th and 14th amendments to the United States Constitution.

51. Defendants New York City and the Deputy Inspector are liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants and the others whose names are currently unknown because they knew, or should have known, of this policy and custom (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board). Despite such notice, the City has failed to take corrective action. This failure caused defendants in the present case to violate plaintiff's civil rights.

52. Plaintiff has been damaged as a result of defendants' official policy and custom that denied his constitutional rights in the amount of Three Hundred Thousand (\$300,000.00) dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

A. In favor of plaintiff in the amount of Three Hundred Thousand (\$300,000.00) dollars for each of plaintiff's Causes of Action;

B. Awarding plaintiff punitive damages in the amount of Three Hundred Thousand (\$300,000.00) dollars on each of plaintiff's Causes of Action;

C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: Brooklyn, New York
July 29, 2014

Yours, etc.

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